

Public Redacted Open Grid Reply and Cross-Opposition

Filed: November 10, 2025 **Synthetic docket:** SYN-DMD-25-CV-0914 **Counsel:** Tamsin Roe and Leo Marr, fictional counsel for Open Grid Archive

Open Grid Archive replies in support of its motion and opposes DOE’s cross-motion. The dispute has narrowed. Open Grid accepts the adequacy of the repository search for present purposes and does not seek disclosure of any actual implementation relationship that DOE properly establishes under Exemption 7(E).

DOE’s response does not cure three defects. First, it describes disparate duty, safety, and communication fields through a categorical 7(F) theory without a sufficiently concrete functional connection to expected danger. Second, it treats its supplemental release as proof that every remaining sentence is inseparable, although the release shows that closer review found meaningful administration. Third, it seeks aggregate sealing based on collection-level reasons rather than document-specific findings.

The approved notices are [REDACTED—FICTIONAL DECISION CONDITION], [REDACTED—FICTIONAL RESPONSE ORDER], [REDACTED—FICTIONAL ESCALATION VALUE], [REDACTED—FICTIONAL DUTY ROLE], [REDACTED—FICTIONAL SAFETY REFERENCE], and [REDACTED—FICTIONAL CONTACT CHANNEL]. They permit adjudication without exposure. Open Grid asks the Court to distinguish a concealed operational relation from a neutral heading, require proof for each function, and keep public counterparts accessible.

The appropriate remedy is a supported re-review, not immediate disclosure of a contested field. DOE’s cross-motion should be denied because the current record cannot sustain its broad conclusions as a matter of law.

The 7(E) Dispute Is Limited

DOE spends substantial effort proving propositions Open Grid does not contest. A fictional playbook used to prevent and coordinate responses to unlawful attacks may satisfy Exemption 7's law-enforcement-purpose threshold. A nonpublic implementation relationship can remain protected even when the general concept of triage is familiar.

Accordingly, Open Grid does not seek the link between [REDACTED—FICTIONAL DECISION CONDITION] and [REDACTED—FICTIONAL RESPONSE ORDER] where DOE shows that the link organizes an approved technique or procedure. It likewise recognizes that a true guideline represented by [REDACTED—FICTIONAL ESCALATION VALUE] may be withheld upon the required circumvention showing.

The disagreement concerns DOE's boundary. A revision date does not reveal a trigger. A publication-owner sentence does not expose response order. An administrative caption is not necessarily a guideline. The agency invokes context repeatedly but provides only a family-level explanation for why the placement of each retained passage matters.

The Court can sustain the supported operational core and still require another segregation determination. Treating those outcomes as mutually exclusive would give exempt implementation details a shielding effect Congress did not provide.

Category Labels Do Not Supply Category Proof

DOE correctly states that recurring information may be organized by function. Its own presentation shows why the function must be defined with care. [REDACTED—FICTIONAL DUTY ROLE] can appear in an administrative custody entry or in an asserted protective assignment. [REDACTED—FICTIONAL SAFETY REFERENCE] may be general or protective, while [REDACTED—FICTIONAL CONTACT CHANNEL] can mark publication distribution or protective coordination.

Calling both occurrences human-function information does not explain their common disclosure consequence. The agency must demonstrate that reviewers examined the documents, formed a coherent category, and connected exposure of that category to an interest protected by the exemption. A label is the beginning of a description, not the end of the analysis.

DOE's family-by-family discussion adds titles and page totals but largely repeats the same prediction. It does not explain why neutral surrounding text becomes harmful in each context. The controlled samples could support more particular reasoning, yet the declarations use them mainly to restate the aggregate position.

Open Grid does not demand a description that reveals a concealed value. A high-level distinction between archival stewardship and protective responsibility would allow meaningful review. DOE's failure to make that distinction is a record deficiency, not a reason to defer automatically.

The Categorical 7(F) Nexus Remains Missing

Exemption 7(F) requires a reasonable expectation that disclosure will endanger some individual's life or physical safety. DOE need not identify the person by name. It must still explain how the information at issue could produce that danger.

The agency's theory moves from protective program, to human-function field, to possible interference. That sequence leaves out the functional bridge. The public record does not distinguish an ordinary records custodian from a person performing a safety-sensitive task, or a document distribution category from a relationship that could expose someone to harm.

The escalation sample contains [REDACTED—FICTIONAL DUTY ROLE] near [REDACTED—FICTIONAL SAFETY REFERENCE] and [REDACTED—FICTIONAL CONTACT CHANNEL]. Their coexistence might justify closer scrutiny, but it does not prove that every nearby classification, or every appearance elsewhere, falls under 7(F). DOE must explain the meaningful group and expected consequence.

Open Grid's position does not depend on naming or locating anyone. The agency can describe the protected function at a level that reveals no identity, instruction, or contact. Until it does, the Court cannot determine whether the category is tailored to danger or simply tracks the subject matter of the records.

Segregability Must Be Demonstrated Passage by Passage

DOE's supplemental protocol asks the right questions but does not show its work for all retained material. A reviewer should determine whether a passage states standalone administration, whether its location exposes [REDACTED—FICTIONAL DECISION CONDITION] or [REDACTED—FICTIONAL RESPONSE ORDER], and whether neutral text can be detached from [REDACTED—FICTIONAL DUTY ROLE].

The release of seventeen passages proves those questions can produce additional public information. Six pages yielded two passages and five yielded one. The disclosures included review ownership, headings, approval status, revision context, archival direction, and general coordination. None revealed a decision relation or safety function.

DOE now asserts that every remaining passage either discloses placement or lacks meaning. The declarations do not tie that conclusion to the passages with enough specificity for testing. They often state the result at a record-family level and ask the Court to infer completion from the existence of the protocol.

Segregability is an evidentiary obligation, not a presumption awarded after one correction. Open Grid seeks coherent propositions, not stray words. The paired exhibits show that administrative sentences can remain readable when a token replaces a field. A supported line review should identify why each additional candidate succeeds or fails that test.

The Supplemental Release Supports Reconsideration

DOE portrays RLS-OG-002 as evidence of good process. Open Grid does not allege bad faith and agrees that correction is appropriate. The legal significance is narrower: the first categorical assurances did not capture all segregable text, and a more focused pass changed the public record.

The source universe remained fixed at twelve records and 200 pages. No repository was added and no new edition appeared. The only change was judgment about portions of eleven existing images. That isolates the disputed variable: how DOE evaluated meaningful public text around its asserted exemptions.

The correction therefore bears directly on the weight of the final conclusory statements. A declaration saying reviewers found nothing else is not enough if it fails to describe the remaining uses with reviewable specificity. The Court need not assume that the second pass is infallible merely because it improved on the first.

A remand for a documented determination would not punish the agency for supplementation. It would use what the supplementation taught: passage-level distinctions matter, and neutral administration can be released without compromising the asserted operational relationships.

Complete Withholding Requires More Than Structural Assertions

DOE withheld GS-DT-4.2, GS-DT-3.7, and GS-EM-4.2 in full. It says their headings and placement reveal [REDACTED—FICTIONAL DECISION CONDITION], [REDACTED—FICTIONAL RESPONSE ORDER], or [REDACTED—FICTIONAL ESCALATION VALUE] organization. That explanation may support some portions, but it does not establish that every meaningful administrative statement shares the same status.

The indexes reveal titles, edition dates, lengths, and general functions. Other possible content includes approval language, revision history, document ownership, and archival instructions. DOE must explain whether those propositions appear and why they cannot be separated. Saying that relationships “permeate” a document is the categorical conclusion under review.

Open Grid is not asking for a skeletal page that would mislead a reader. It asks for understandable administrative units. If none exists in a fully withheld record, a particular declaration and in-camera confirmation can establish that fact. The present public account does not distinguish repetition from structural revelation with sufficient clarity.

The Court may preserve the entire documents while ordering a better showing. Such an order respects the claimed 7(E) interest and allows review of segregation without risking disclosure through experimentation.

Public Counterparts Are the Starting Point for Access

DOE is correct that paired filings are less restrictive than placing every controlled exhibit on the public docket. That does not answer whether all controlled pages should remain sealed together or whether its duration and findings are sufficiently tailored.

A sealing decision must identify the judicial record, the source of access, the interest served, alternatives, and supporting findings. The consolidated motion lists the materials but often relies on the same program-level explanation for a Vaughn index, sample record, declaration, and party memorandum. Their roles in adjudication differ.

Open Grid asks the Court to keep each public counterpart available and to restrict only the semantic material necessary for review. An interim seal may remain while the Court conducts in-camera comparison. The final order should explain which document or passage requires continued closure and why a narrower alternative is inadequate.

The fact that all controlled labels are fictional does not eliminate the exercise's access issue. The record is designed to test whether courts make specific findings rather than allow a sensitive subject to determine access categorically.

A Limited Remedy Preserves Any Valid Exemption

Open Grid does not request immediate release of material that DOE says embodies a protected implementation relation or safety function. It asks the Court to deny final judgment on the insufficient portions of the current showing and require a more particular account.

On remand, DOE can identify functional uses without providing values. It can preserve operational relations, while refining [REDACTED—FICTIONAL DUTY ROLE], [REDACTED—FICTIONAL SAFETY REFERENCE], and [REDACTED—FICTIONAL CONTACT CHANNEL] categories and separately assessing administrative text. The Court can retain controlled materials during that process.

For sealing, the Court can require record-specific proposals and findings while public counterparts stay accessible. That course avoids wholesale unsealing and ensures that restrictions are no broader or longer than justified.

DOE presents the dispute as a choice between deference and disclosure. FOIA supplies a middle path: protect what the agency proves, require adequate support for the rest, and release meaningful nonexempt portions only after review. Open Grid's requested relief follows that structure.

Conclusion and Service

The cross-motion should be denied because DOE's categorical 7(F) nexus and final segregability assertion remain too general for summary judgment. Its supported 7(E) implementation claims may be preserved while the agency supplies a better passage-level account.

The Court should also decline to maintain broad sealing on aggregate findings. Public redacted counterparts should remain the ordinary docket versions, and any controlled access should be tied to an identified record, stated interest, considered alternative, and defined duration.

Tamsin Roe and Leo Marr certify that this reply uses only the approved fictional notices. It includes no live technical information, identity, contact, infrastructure description, or implementable cyber instruction. The motion concerns legal sufficiency on a synthetic record.

Service was made on Corin Pell through the fictional district docket on November 10, 2025. Open Grid respectfully requests the relief stated in its opening memorandum and this reply.